

****03.02.2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in December 2024, an investigation into the operator Unicredit Bank SA and found a violation of the provisions of Article 25 paragraph (1) of the General Data Protection Regulation (GDPR). As such, the operator was sanctioned with a fine of 74,652 lei, equivalent to 15,000 EURO. The investigation was initiated following the operator's submission of two notifications of personal data security breaches under GDPR.

During the investigation, it was found that, in the first instance, the breach of data processing security occurred due to the erroneous functioning of the operator's application used to create usernames, without prior testing in a test environment. This situation led to the unauthorized disclosure of certain processed personal data of clients, such as: first name, last name, current account information, account transactions, account balance, card transactions, card balance.

In the second instance, the breach of data processing security occurred as a result of the operator implementing a solution for client communication with the bank, without conducting adequate prior testing in a test environment, which led to the unauthorized disclosure of personal data (cardholder's name, phone number, transaction date, currency, email address, transaction amount, reason for payment refusal) of a significant number of clients of Unicredit Bank SA.

As such, in relation to the criteria for individualizing sanctions provided by Article 83 of the GDPR, it was determined to impose a fine for the violation of the provisions of Article 25 paragraph (1) of the GDPR, since the operator did not implement, both at the time of establishing the means of processing and during the processing itself, appropriate technical and organizational measures intended to effectively apply the principles of data protection and integrate the necessary safeguards within the processing.

At the same time, a corrective measure was ordered for the operator to technically and organizationally implement a testing plan for all components/applications intended to be introduced in activities that include personal data processing by analyzing all their functionalities in a test environment that simulates the real scenario from the production environment.

It is noted that the operator has paid the imposed fine.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****